

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

-----X Date Purchased:

JOSE ALEJANDRO GARCIA

Plaintiff

SUMMONS

-against-

Plaintiff designates New York
County as the place of trial.

THE CITY OF NEW YORK and P.O. John Doe #1
Through P.O. John Doe #10 in their Individual and
Official Capacities (John Doe is a Fictitious Name of
the Police Officers whose names are not known
at this time),

Defendant(s).

The basis of venue is:

-----X Location of Incident

To the above named Defendant(s):

Plaintiff resides at:
524 E. 119th Street, Apt. 19
New York, NY 10035

PLEASE TAKE NOTICE THAT YOU ARE HEREBY SUMMONED to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: March 27, 2015
Queens, New York

MUSA-OBREGON & ASSOCIATES



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TO:
The City of New York
100 Church Street
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JOSE ALEJANDRO GARCIA

Plaintiff

VERIFIED COMPLAINT

-against-

Plaintiff designates New York
County as the place of trial.

THE CITY OF NEW YORK and P.O. John Doe #1
Through P.O. John Doe #10 in their Individual and
Official Capacities (John Doe is a Fictitious Name of
the Police Officers whose names are not known
at this time),

Defendant(s).

-----X

Plaintiff Jose Alejandro Garcia (hereinafter Mr. Garcia), by and through his
attorneys, **MUSA OBREGON & ASSOCIATES**, complaining of the Defendants The
City Of New York and Police Officers John Doe #1 through John Doe #10 respectfully
alleges, upon information and belief:

SUMMARY OF THE CAUSE OF ACTION

1. Upon information and belief, at all times herein mentioned the Plaintiff Mr.
Garcia is an individual domiciled and residing in the County of New York, State of New
York and was so at the time of the acts described herein.

2. Before the commencement of this action, on or about the 29th day of
April, 2015, a Notice of Claim and demand, together with a notice of intention to sue
against the Defendant CITY OF NEW YORK, (Hereinafter referred to as "CITY"), for
damages sustained by the Plaintiff Mr. Garcia, for injuries and damages herein alleged
resulting from the Negligence, False Arrest, Unlawful Imprisonment, Malicious
Prosecution, and violations of 42 U.S.C. §1983 perpetrated by the CITY at the time when
and at the place where the injuries were received, was served upon the Defendant CITY

within ninety (90) days after such cause of action accrued, and that more than thirty (30) days have elapsed since the notice of claim and demand together with the intention to sue was so served, and the defendant CITY has neglected and refused to pay, settle, adjust and compromise the claim of plaintiff.

3. Mr. Garcia's action was commenced within one year and ninety days after the cause of action occurred.

4. That prior to the commencement of this action, plaintiff presented on June 23rd, 2014, for a 50(h) hearing which was held to its completion.

5. That at all times hereinafter mentioned, the Defendant CITY was, and still is, a municipal corporation duly organized and existing under, and by virtue of the laws of, the State of New York.

6. That this action falls within one or more of the exceptions as set forth in CPLR §1602.

7. That at all times hereinafter mentioned, the Defendant CITY controlled the New York City Police Department, including but not limited to, the actions of its agents, servants and employees.

8. On February 1, 2014, Mr. Garcia was lawfully walking on the sidewalk of 117th Street between First Avenue and Pleasant Avenue in the City of New York, County of New York, and the State of New York with his brother Jose Manuel Garcia.

9. Mr. Garcia and his brother were walking towards a Mechanic Shop located on or around the corner of 118th Street and Pleasant Avenue to secure the Mechanic Shop's services in helping Mr. Garcia and his brother with a broken down car.

10. On February 1, 2014, Mr. Garcia, while lawfully walking on the side walk of 117th Street between First Avenue and Pleasant Avenue towards the Mechanic Shop located on or around the corner of 118th Street and Pleasant Avenue, was without probable cause, reasonable suspicion, or any other provocation or lawful grounds unlawfully arrested by the New York City Police Department.

11. On February 1, 2014, New York City Police Department Police Officers approached Mr. Garcia, failed to identify themselves, restrained Mr. Garcia with physical force, and detained him by placing metal handcuffs on his person and placing Mr. Garcia in a New York City Police Department motor vehicle secured by locking mechanisms.

12. On February 1, 2014, the New York City Police Department and the Police Officers restrained and detained Mr. Garcia against his will and without probable cause or other legal justification.

13. On February 1, 2014, while executing the aforesaid unlawful arrest, the New York City Police Officers used undue, excessive, extreme, and malicious physical force against the body of Mr. Garcia.

14. On February 1, 2014, while executing the aforesaid unlawful arrest, the New York City Police Department and the New York City Police Officers acted intentionally and purposefully by intentionally restraining, confining, and detaining Mr. Garcia.

15. On February 1, 2014, Mr. Garcia was personally aware of being intentionally and purposefully restrained, confined, detained, and unlawfully arrested by the New York City Police Department and New York City Police Officers without probable cause or any other lawful justification.

16. On February 1, 2014, Mr. Garica, after being unlawfully arrested on 117th Street between First Avenue and Pleasant Avenue, was transported by the New York Police Officers to a New York City Police Department local Precinct where Mr. Garcia was intentionally and purposefully further restrained, confined, and detained by the New York City Police Department.

17. On February 1, 2014, Mr. Garcia, after being unlawfully arrested on 117th Street between First Avenue and Pleasant Avenue, and intentionally and purposefully further restrained, confined, and detained by the New York City Police Department at a local Precinct, was transported by the New York City Police Department downtown to a detention facility in or near One Police Plaza on or around the area of Broadway and Rector Street.

18. Based upon best information and belief, on February 1, 2014, the New York Police Officers and the New York Police Department did not have an arrest warrant for Mr. Garcia.

19. On or about February 1, 2014, the Defendant CITY through the combined efforts of the New York City Police Officers, the New York City Police Department, and the District Attorney of the County of New York initiated criminal judicial proceedings against Mr. Garcia under the Docket Number 2014NY009485 and under the caption The People of the State of New York v. Jose Garcia.

20. On or about February 1, 2014, the Defendant CITY through the combined efforts of the New York City Police Officers, the New York City Police Department, and the District Attorney of the County of New York initiated criminal judicial proceedings against the Mr. Garcia under the Docket Number 2014NY009485 and under the caption

The People of the State of New York v. Jose Garcia intentionally, purposefully, and with malicious intent.

21. On or about February 1, 2014, the Defendant CITY through the combined efforts of the New York City Police Officers, the New York City Police Department, and the District Attorney of the County of New York initiated criminal judicial proceedings against the Mr. Garcia under the Docket Number 2014NY009485 under the caption The People of the State of New York v. Jose Garcia intentionally, purposefully, with malice, and without probable cause.

22. On or about February 2, 2014, Mr. Garcia was produced before a Judge at the Supreme Court of New York County, Criminal Term, where a Bail amount of approximately \$10,000 was set at the request of the District Attorney of the County of New York.

23. From on or about February 1, 2014, through on or about February 12, 2014, Mr. Garcia remained intentionally detained by the Defendant CITY, Mr. Garcia was conscious of his confinement, Mr. Garcia did not consent to his confinement, and the Defendant CITY was not otherwise privileged to confine Mr. Garcia.

24. On or about February 12, 2014, the Fourth Grand Jury for the Second Term, having heard the evidence on the Felony Complaint under Docket Number 2014NY009485 and under caption The People of The State of New York v. Jose Garica, voted to dismiss all of the charges against Mr. Garcia in connection with the unlawful arrest described herein.

25. The Fourth Grand Jury for the Second Term's dismissal of all of the charges against Mr. Garcia in connection with Mr. Garcia's unlawful arrest described

herein terminated the judicial proceedings in his favor that were intentionally and maliciously brought against Mr. Garcia by the Defendant CITY.

26. That at all times mentioned herein, the New York City Police Officers, the New York City Police Department, and the District Attorney of the County of New York were agents, servants, and/or employees of the Defendant CITY.

27. That at all times mentioned herein, the New York City Police Officers, the New York City Police Department, and the District Attorney of the County of New York were acting as the agents, servants, and/or employees of the Defendant CITY.

28. That at all times mentioned herein, the New York City Police Officers, the New York City Police Department, and the District Attorney of the County of New York were acting within the scope of their employment for Defendant CITY.

29. That at all times mentioned herein, the Defendant CITY was and is liable for the actions of the New York City Police Officers, the New York City Police Department, and the District Attorney of the County of New York.

30. Upon information and belief, at all times mentioned herein, Police Officers John Doe #1 through John Doe #10 were and are liable for their actions as agents, servants, and/or employees of the New York City Police Department and in their individual capacities.

31. That at all times mentioned herein, the Defendant CITY purposefully and intentionally and maliciously maintained a public policy known as Stop-Question-And-Frisk.

32. That at all times mentioned herein, the Defendant CITY's program Stop-Question-And-Frisk intentionally, maliciously, and in violation of the Constitution of the

United States of America targeted members of the African American and Latino population for arrest without probable cause.

33. That at all time mentioned herein, Mr. Garcia is and was a member of the Latino population that was intentionally, maliciously, and in violation of the Constitution of the United States targeted for arrest by the Defendant CITY's program Stop-Question-And-Frisk without probable cause.

34. On August 12, 2013, U.S. District Court Judge Shira Scheindlin ruled that the program Stop-Question-And-Frisk was unconstitutional.

35. That by reason of the foregoing, Mr. Garcia was caused to sustain serious injuries and to have suffered pain, shock, and mental anguish; that Mr. Garcia was caused to suffer false arrest; that Mr. Garcia was caused to suffer false imprisonment; that Mr. Garcia was caused to suffer a loss of civil liberties and his Constitutionally protected right to be free; and that these injuries and their effects will be permanent; and as a result of said injuries, Mr. Garcia has been caused to incur, and will continue to incur, expenses for medical care and attention; and, as a further result, Mr. Garcia was, and will continue to be, rendered unable to perform Mr. Garcia's normal activities and duties and has sustained serious injuries, including but not limited to, great pain, agony, injury, suffering, disability, as well as mental anguish and emotional distress.

36. By reason of the above, Plaintiff has sustained damages, both general and special, in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FIRST CAUSE OF ACTION
(Assault and Battery)

37. Mr. Garcia repeats, reiterates, re-alleges each and every allegation set forth above with the same force and effect as if set forth at length herein.

38. On or about February 1, 2014, Mr. Garcia was in imminent apprehension of harmful contact.

39. On or about February 1, 2014, Mr. Garcia was intentionally, wrongfully, maliciously, assaulted, beaten, and battered by the Defendants CITY and Police Officers John Doe #1 through John Doe #10, and Mr. Garcia was caused to sustain severe and permanent injuries.

40. That by reason of the foregoing, Mr. Garcia was caused to sustain serious injuries and to have suffered pain, shock, and mental anguish; that these injuries and their effects will be permanent; and as a result of said injuries, Mr. Garcia has been caused to incur, and will continue to incur, expenses for medical care and attention; and, as a further result, Mr. Garcia was, and will continue to be, rendered unable to perform Mr. Garcia's normal activities and duties and has sustained serious injuries; including, but not limited to, great pain, agony, injury, suffering, disability, as well as mental anguish and emotional distress.

42. By reason of the above, the Defendants CITY and Police Officers John Doe #1 through John Doe #10 are liable to Mr. Garcia for Assault and Battery.

43. That by reason of the foregoing, Mr. Garcia has been damaged in an amount to be determined at the trial of this action, which is an amount that exceeds the jurisdiction of all lower courts.

AS AND FOR A SECOND CAUSE OF ACTION
(Negligence)

44. Mr. Garcia repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if set fourth at length herein.

45. The Defendants CITY and Police Officer John Doe #1 through John Doe #10 were negligent, careless, and reckless in their conduct, in holding Mr. Garica, in detaining Mr. Garica, and in causing the plaintiff to sustain injury, in causing injury to Mr. Garcia to sustain injury the Defendants CITY and Police Officers John Doe #1 through John Doe #10 were further negligent.

46. That by reason of the foregoing, Mr. Garcia was caused to sustain serious injuries and to have suffered pain, shock, and mental anguish; that these injuries and their effects will be permanent; and as a result of said injuries, Mr. Garcia has been caused to incur, and will continue to incur, expenses for medical care and attention; and, as a further result, Mr. Garcia was, and will continue to be, rendered unable to perform Mr. Garcia's normal activities and duties and has sustained serious injuries; including, but not limited to, great pain, agony, injury, suffering, disability, as well as mental anguish and emotional distress.

47. By reason of the above, the Defendants CITY and Police Officers John Doe #1 through John Doe #10 are liable to Mr. Garcia for Negligence.

48. That by reason of the foregoing, Mr. Garcia has been damaged in an amount to be determined at the trial of this action, which is an amount that exceeds the jurisdiction of all lower courts.

AS AND FOR A THIRD CAUSE OF ACTION
(False Arrest and False Imprisonment)

49. Mr. Garcia repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if set forth at length herein.

50. The Defendants CITY and Police Officers John Doe #1 through John Doe #10 intentionally, purposefully, and maliciously restrained, confined, and detained Mr. Garcia.

51. Mr. Garcia was conscious of being restrained, confined, and detained.

52. Mr. Garcia did not consent to be restrained, confined, and detained by the Defendants CITY and Police Officers John Doe #1 through John Doe #10.

53. That by reason of the foregoing, Mr. Garcia was caused to sustain serious injuries and to have suffered pain, shock, and mental anguish; that these injuries and their effects will be permanent; and as a result of said injuries, Mr. Garcia has been caused to incur, and will continue to incur, expenses for medical care and attention; and, as a further result, Mr. Garcia was, and will continue to be, rendered unable to perform Mr. Garcia's normal activities and duties and has sustained serious injuries; including, but not limited to, great pain, agony, injury, suffering, disability, as well as mental anguish and emotional distress.

54. By reason of the above, the Defendants CITY and Police Officers John Doe #1 through John Doe #10 are liable to Mr. Garcia for False Arrest and False Imprisonment.

55. By reason of the above, Mr. Garcia has sustained damages, both general and special, in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION
(Intentional Infliction of Mental and Emotional Distress)

56. Mr. Garica repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if set forth at length herein.

57. The Defendants CITY and Police Officers John Doe #1 through John Doe #10's conduct was extreme and outrageous and beyond the bounds of decency, and as such constituted intentional infliction of mental and emotional distress.

58. That by reason of the foregoing, Mr. Garcia was caused to sustain serious injuries and to have suffered pain, shock, and mental anguish; that these injuries and their effects will be permanent; and as a result of said injuries, Mr. Garcia has been caused to incur, and will continue to incur, expenses for medical care and attention; and, as a further result, Mr. Garcia was, and will continue to be, rendered unable to perform Mr. Garcia's normal activities and duties and has sustained serious injuries; including, but not limited to, great pain, agony, injury, suffering, disability, as well as mental anguish and emotional distress.

59. By reason of the above, the Defendants CITY and Police Officers John Doe #1 through John Doe #10 are liable to Mr. Garcia for Intentional Infliction of Mental and Emotional Distress.

60. By reason of the above, Mr. Garcia has sustained damages, both general and special, in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION
(Negligent Infliction of Emotional Distress)

61. Mr. Garcia repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if set forth at length herein.

62. The Defendants CITY and Police Officers John Does #1 through John Doe #10's conduct was careless and negligent as to the emotional distress as to Mr. Garcia.

63. That by reason of the foregoing, Mr. Garcia was caused to sustain serious injuries and to have suffered pain, shock, and mental anguish; that these injuries and their effects will be permanent; and as a result of said injuries, Mr. Garcia has been caused to incur, and will continue to incur, expenses for medical care and attention; and, as a further result, Mr. Garcia was, and will continue to be, rendered unable to perform Mr. Garcia's normal activities and duties and has sustained serious injuries; including, but not limited to, great pain, agony, injury, suffering, disability, as well as mental anguish and emotional distress.

64. By reason of the above, the Defendants CITY and Police Officers John Doe #1 through John Doe #10 are liable to Mr. Garcia for Negligent Infliction of Emotional Distress.

65. By reason of the above, Mr. Garcia has sustained damages, both general and special, in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION
(Excessive Force)

66. Mr. Garcia repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if set forth at length herein.

67. The force used by the Defendants CITY and Police Officers John Doe #1 through John Doe #10 upon the person of Mr. Garcia as described herein was excessive, unnecessary, unreasonable, and greater than that which was reasonably prudent under the circumstances.

68. That by reason of the foregoing, Mr. Garcia was caused to sustain serious injuries and to have suffered pain, shock, and mental anguish; that these injuries and their effects will be permanent; and as a result of said injuries, Mr. Garcia has been caused to incur, and will continue to incur, expenses for medical care and attention; and, as a further result, Mr. Garcia was, and will continue to be, rendered unable to perform Mr. Garcia's normal activities and duties and has sustained serious injuries; including, but not limited to, great pain, agony, injury, suffering, disability, as well as mental anguish and emotional distress.

69. By reason of the above, the Defendants CITY and Police Officers John Doe #1 through John Doe #10 are liable to Mr. Garcia for Excessive Force.

70. By reason of the above, Mr. Garcia has sustained damages, both general and special, in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SEVENTH CAUSE OF ACTION
(Malicious Prosecution)

71. Mr. Garcia repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if set forth at length herein.

72. The Defendant CITY's conduct, in commencing and participating in criminal proceedings against Mr. Garcia, was without reason or probable cause and was instituted with malice.

73. That by reason of the foregoing, Mr. Garcia was caused to sustain serious injuries and to have suffered pain, shock, and mental anguish; that these injuries and their effects will be permanent; and as a result of said injuries, Mr. Garcia has been caused to incur, and will continue to incur, expenses for medical care and attention; and, as a further result, Mr. Garcia was, and will continue to be, rendered unable to perform Mr. Garcia's normal activities and duties and has sustained serious injuries; including, but not limited to, great pain, agony, injury, suffering, disability, as well as mental anguish and emotional distress.

74. By reason of the above, the Defendants CITY is liable to Mr. Garcia for Malicious Prosecution.

75. By reason of the above, Plaintiff has sustained damages, both general and special, in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR AN EIGHTH CAUSE OF ACTION
(Pursuant to 42 U.S.C. § 1983 Violation of Plaintiff's Civil Rights)

76. Mr. Garcia repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if set forth at length herein.

77. At all times mentioned herein, the acts of the Defendants CITY and Police Officers John Doe #1 through John Doe #10 as described herein were under color of law.

78. The acts of the Defendants CITY and Police Officers John Doe #1 through John Doe #10 towards Mr. Garcia as described herein were without warrant, authority of law, or a reasonable cause or belief that Mr. Garcia had committed any crime.

79. That by reason of the foregoing, Mr. Garcia was caused to sustain serious injuries and to have suffered pain, shock, and mental anguish; that these injuries and their effects will be permanent; and as a result of said injuries, Mr. Garcia has been caused to incur, and will continue to incur, expenses for medical care and attention; and, as a further result, Mr. Garcia was, and will continue to be, rendered unable to perform Mr. Garcia's normal activities and duties and has sustained serious injuries; including, but not limited to, great pain, agony, injury, suffering, disability, as well as mental anguish and emotional distress.

80. By reason of the above, the Defendants CITY and Police Officers John Doe #1 through John Doe #10 are liable to Mr. Garcia pursuant to 42 U.S.C. § 1983 Violation of Plaintiff's Civil Rights.

81. By reason of the above, Mr. Garcia has sustained damages, both general and special, in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A NINTH CAUSE OF ACTION
(Pursuant to 42 U.S.C. § 1983 for Assault and Battery)

82. Mr. Garcia repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if set forth at length herein.

83. The Defendants CITY and Police Officers John Doe #1 through John Doe #10 assault and battery of Plaintiff was excessive, unwarranted, unnecessary, and violent and violated Mr. Garcia's rights under the Constitution of the United States.

84. That by reason of the foregoing, Mr. Garcia was caused to sustain serious injuries and to have suffered pain, shock, and mental anguish; that these injuries and their effects will be permanent; and as a result of said injuries, Mr. Garcia has been caused to incur, and will continue to incur, expenses for medical care and attention; and, as a further result, Mr. Garcia was, and will continue to be, rendered unable to perform Mr. Garcia's normal activities and duties and has sustained serious injuries; including, but not limited to, great pain, agony, injury, suffering, disability, as well as mental anguish and emotional distress.

85. By reason of the above, the Defendants CITY and Police Officers John Doe #1 through John Doe #10 are liable to Mr. Garcia pursuant to 42 U.S.C. § 1983 for Assault and Battery.

86. By reason of the above, Mr. Garcia has sustained damages, both general and special, in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A TENTH CAUSE OF ACTION
(Pursuant to 42 U.S.C. § 1983 for False Arrest and False Imprisonment)

87. Mr. Garcia repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if set forth at length herein.

88. The Defendants CITY and Police Officers John Doe #1 through John Doe #10 arrested, detained, and imprisoned Mr. Garcia, without warrant, even though they knew or should have known that he was wholly innocent of any crime then and there alleged against him, arrested Mr. Garcia pursuant to a public policy known as Stop-Questions-And-Frisk that intentionally and maliciously targeted African Americans and Latinos, and thus violated Mr. Garcia's constitutional rights.

89. That by reason of the foregoing, Mr. Garcia was caused to sustain serious injuries and to have suffered pain, shock, and mental anguish; that these injuries and their effects will be permanent; and as a result of said injuries, Mr. Garcia has been caused to incur, and will continue to incur, expenses for medical care and attention; and, as a further result, Mr. Garcia was, and will continue to be, rendered unable to perform Mr. Garcia's normal activities and duties and has sustained serious injuries; including, but not limited to, great pain, agony, injury, suffering, disability, as well as mental anguish and emotional distress.

90. By reason of the above, the Defendants CITY and Police Officers John Doe #1 through John Doe #10 are liable to Mr. Garcia pursuant to 42 U.S.C. § 1983 for False Arrest and False Imprisonment.

91. By reason of the above, Mr. Garcia has sustained damages, both general and special, in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR AN ELEVENTH CAUSE OF ACTION
(Pursuant to 42 U.S.C. § 1983 Intentional Infliction of Emotional Distress)

92. Mr. Garcia repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if set forth at length herein.

93. The Defendants CITY and Police Officers John Doe #1 through John Doe #10 conduct towards Mr. Garcia was outrageous, excessive, unnecessary, and unreasonable, and violated the Constitutional rights of Mr. Garcia.

94. That by reason of the foregoing, Mr. Garcia was caused to sustain serious injuries and to have suffered pain, shock, and mental anguish; that these injuries and their effects will be permanent; and as a result of said injuries, Mr. Garcia has been caused to incur, and will continue to incur, expenses for medical care and attention; and, as a further result, Mr. Garcia was, and will continue to be, rendered unable to perform Mr. Garcia's normal activities and duties and has sustained serious injuries; including, but not limited to, great pain, agony, injury, suffering, disability, as well as mental anguish and emotional distress.

95. By reason of the above, the Defendants CITY and Police Officers John Doe #1 through John Doe #10 are liable to Mr. Garcia pursuant to 42 U.S.C. § 1983 for Intentional Infliction of Emotional Distress.

96. By reason of the above, Mr. Garcia has sustained damages, both general and special, in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A TWELFTH CAUSE OF ACTION
(Pursuant to 42 U.S.C. § 1983 Malicious Prosecution)

97. Mr. Garcia repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if set forth at length herein.

98. The Defendant CITY and Police Officers John Doe #1 through John Doe #10's conduct in commencing criminal proceedings against Mr. Garcia was without probable cause and was instituted with malice against Mr. Garcia and without regard for Mr. Garcia's Civil and Constitutional Rights.

99. That by reason of the foregoing, Mr. Garcia was caused to sustain serious injuries and to have suffered pain, shock, and mental anguish; that these injuries and their effects will be permanent; and as a result of said injuries, Mr. Garcia has been caused to incur, and will continue to incur, expenses for medical care and attention; and, as a further result, Mr. Garcia was, and will continue to be, rendered unable to perform Mr. Garcia's normal activities and duties and has sustained serious injuries; including, but not limited to, great pain, agony, injury, suffering, disability, as well as mental anguish and emotional distress.

100. By reason of the above, the Defendants CITY and Police Officers John Doe #1 through John Doe #10 are liable to Mr. Garcia pursuant to 42 U.S.C. § 1983 for Malicious Prosecution.

101. By reason of the above, Mr. Garcia has sustained damages, both general and special, in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, Mr. Jose Alejandro Garcia demands judgment:

(1) on all causes of action against the Defendant in an amount, which exceeds the jurisdictional limitations of all lower courts which would otherwise have jurisdiction over this action, to be determined at trial, together with interest, the costs and disbursements of this action,

(2) punitive damages by reason of the acts as alleged herein to be determined by the Court, and

(3) attorneys fees, pursuant to 42 U.S.C. § 1983, in an amount to be determined at trial.

Dated: March 27, 2015
Queens, New York

Respectfully submitted,



Benjamin D. Weisenberg
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EOIR-ID#: WB121988
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ATTORNEY'S VERIFICATION

BENJAMIN D. WEISENBERG, ESQ., an attorney duly admitted to practice law before the courts of the State of New York, as and for Musa Obregon & Associates, affirms the following to be true under the penalties of perjury:

1. I am an associated with the firm of Musa Obregon & Associates, attorneys of record for Plaintiffs.

2. I have read the annexed **SUMMONS AND VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true.

3. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in the files maintained by this office.

4. This verification is made by me because the Plaintiff **Jose Alejandro Garcia** is not presently in, nor does he reside in, the county wherein undersign counsel maintains its offices.

Dated: March 27, 2014
Queens, New York

MUSA-OBREGON & ASSOCIATES
Respectfully submitted,



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